

GEN 4.2 AIR NAVIGATION SERVICES CHARGES

1. General Provisions

1.1 Applicability

- 1.1.1 The charges described herein shall be applicable to aircraft on international, domestic, and general aviation operations flying into and out of the airports in the Republic of the Philippines including aircraft overflying the Manila Flight Information Region for the services provided in different phases of flight operations such as air traffic management, aeronautical and flight information service, alerting service, search and rescue service and for the use of air navigation facilities, communications, and surveillance equipment.

2. Operational Charges

2.1 Overflights and International Flights

- 2.1.1 Overflight/s and international flights will be charged in U.S. dollars (US \$), based on the formula for calculating Air Navigation Charges (ANC) which is equal to the total Distance (D) flown by the aircraft divided by one hundred (100) and multiplied by its Weight Factor (W), the product of which is multiplied by the unit rate of US \$1.30.

$$ANC = (D/100 \times W) \times \text{US } \$1.30$$

- 2.1.2 Where Distance (D) in kilometers, shall be based on the flight plan adhering to the established Airway System of the Philippines.

- 2.1.3 The Weight Factor (W) shall have the following values:

MTOW	WEIGHT FACTOR (W)
More than 400 tonnes	56
301 - 400 tonnes	49
201 - 300 tonnes	42
101 - 200 tonnes	35
61 - 100 tonnes	28
31 - 60 tonnes	21
16 - 30 tonnes	14
15 tonnes and below	7

Note: MTOW refers to the Maximum Take-off Weight specified by the aircraft manufacturer.

2.2 Domestic and General Aviation Flights

- 2.2.1 Domestic and General Aviation Flights will be charged in US \$, based on the formula for calculating ANC which is equal to the total Distance (D) flown by the aircraft divided by one hundred (100) and multiplied by its Weight Factor (W), the product of which is multiplied by the unit rate of US \$0.65.

$$ANC = (D/100 \times W) \times \text{US } \$0.65$$

- 2.2.2 Distance (D) shall be based on flight plan including off-airway routes as applicable. Charges for Domestic and General Aviation shall not be less than US \$10.00.

2.3 Training Flights

- 2.3.1 Training flights conducted by an Approved Training Organization conducted in civilian airports will be charged a base rate and additional rate, except herein provided. The ANC shall be as follows:

- a. In consideration of training flights only, a flight plan shall mean one (1) take-off or one (1) landing at the same airport, and may include the following:
- i. Touch-and-Go - means landing on a runway and taking off again without coming to a full stop. The training flight may conduct a maximum of four (4) sets of landing and take-off.
 - ii. Expanded Touch-and-Go - a condition wherein upon landing, the aircraft vacates the runway and the pilot or co-pilot immediately manifests his/her intention to the Air Traffic Service of departing or taking off provided that:
 1. the waiting time shall not exceed fifteen (15) minutes upon touchdown;
 2. the pilot and/or co-pilot did not disembark the aircraft; and
 3. has not turned off the engine/s.

Note: Expanded Touch-and-Go can only be utilized twice per flight plan.

- b. For CAA of the Philippines (CAAP) airports with Air Traffic Services, the base rate for a training flight with touch and go maneuver shall be Php 365.00; whereas the base rate for expanded touch and go will be Php 730.00.

Sample Computation with Air Traffic Service	
One (1) Flight Plan with Four (4) Touch-and-Go	$= \text{Base Rate} + [(\text{Php } 150) \times (\text{No. of Touch-and-Go})]$ $= \text{Php } 365 + [(\text{Php } 150)(4)]$ $= \text{Php } 365 + \text{Php } 600$ $= \text{Php } 965$
One (1) Flight Plan with Four (4) Touch-and-Go and Two (2) Expanded Touch-and-Go	$= \text{Base Rate} + [(\text{Php } 150) \times (\text{No. of Touch-and-Go} + \text{Expanded Touch-and-Go})]$ $= \text{Php } 730 + [(\text{Php } 150)(4+2)]$ $= \text{Php } 730 + [(\text{Php } 150)(6)]$ $= \text{Php } 730 + \text{Php } 900$ $= \text{Php } 1,630$

- c. For CAAP airports with no Air Traffic Services, the applicable base rate for a training flight with touch-and-go maneuver shall be Php 290.00 and Php 580.00 for an expanded touch-and-go.

Provided further that the training flight shall be responsible for filing the Flight Plan(s) in the airport where they will conduct the training flight(s) and advise the nearest Air Traffic Service of their intention.

Sample Computation without Air Traffic Service	
One (1) Flight Plan with Four (4) Touch-and-Go	$= \text{Base Rate} + [(\text{Php } 150) \times (\text{No. of Touch-and-Go})]$ $= \text{Php } 290 + [(\text{Php } 150)(4)]$ $= \text{Php } 290 + \text{Php } 600$ $= \text{Php } 890$
One (1) Flight Plan with Four (4) Touch-and-Go and Two (2) Expanded Touch-and-Go	$= \text{Base Rate} + [(\text{Php } 150) \times (\text{No. of Touch-and-Go} + \text{Expanded Touch-and-Go})]$ $= \text{Php } 580 + [(\text{Php } 150)(4+2)]$ $= \text{Php } 580 + [(\text{Php } 150)(6)]$ $= \text{Php } 580 + \text{Php } 900$ $= \text{Php } 1,480$

- d. An additional fee of Php 150.00 shall be charged per Touch-and-Go or Expanded Touch-and-Go and covered by a single flight plan as defined in item 2.3.1.a, items i and ii.
- e. The aircraft used is RP registered as a training aircraft and light single engine.
- f. For Rotary Training Aircraft, a single flight plan should not exceed one (1) hour reckoned from the time of departure to the time of arrival. The point of departure and point of arrival is the same.

- g. If the above-mentioned provisions are not applicable, such as training flight(s) in jet training area(s), maintenance flights, recurrency flights, item 2.2 shall apply.

3. Cost basis for air navigation services and exemptions/reductions

3.1 Basis - Operational charges for the use of the enroute and terminal navigational facilities and air traffic services provided as required by the International Civil Aviation Organization (ICAO), shall be based on each arrival, departure, or overflight.

3.1.1 For purposes of this part, one (1) flight shall mean:

- a. domestic flight from departure airport to destination airport;
- b. inbound international flight from crossing Manila FIR boundary to the arrival airport;
- c. outbound international flight from the departure airport until crossing the Manila FIR boundary; and
- d. overflight(s) from entry up to exit traversing the Manila FIR.

3.2 Exemptions

3.2.1 Unless otherwise specifically provided, the payment of fees and charges prescribed herein shall not apply to the following:

- a. military aircraft registered in the name of and operated by the Republic of the Philippines;
- b. aircraft owned, leased, or chartered for the use of the Office of the President;
- c. aircraft used by the Head of State of respective foreign governments for official purposes, subject to the approval of the Department of Foreign Affairs;
- d. aircraft engaged in non-commercial activities, mercy and humanitarian missions, or government-sponsored missions, subject to the approval of the Director General;
- e. aircraft that, by provision of existing laws or treaties, are exempted from payment of fees and other charges;
- f. military aircraft of a foreign government where such government provides similar exemptions to military aircraft of the Republic of the Philippines; and
- g. aircraft diverted from its planned route or forced to return to the airport of departure due to a medical emergency that must be declared to Air Traffic Service.

3.3 Other fees and charges

3.3.1 The fees and charges prescribed herein shall not prejudice the right of CAAP to impose and collect such other reasonable charges as may be determined by the Director General for the use of such other air navigation facilities and services not covered herein.

4. Methods of Payment

4.1 Payment

4.1.1 The fees and charges prescribed herein shall be collected within fifteen (15) days upon receipt of billings.

4.1.2 Delayed payments to CAAP shall be subject to an interest rate of twelve percent (12%) per annum for payments made after the collection period.

4.1.3 As a general rule, the fees assessed herein shall be paid in US \$ currency, unless otherwise provided. Fees quoted in US \$ may be paid in Philippine Peso equivalent at the prevailing Bankers Association of the Philippines closing rate on the day prior to the date of payment.

4.2 Value Added Tax (VAT) Charges

4.2.1 All CAAP charges as prescribed herein shall be subject to the applicable VAT as prescribed under the National Internal Revenue Code and other relevant laws.

4.3 Effects of Non-payment

4.3.1 Without prejudice to such action and/or proceedings as may be deemed proper and necessary, the failure of any person, firm or corporation to pay any charges upon demand by CAAP shall be a ground to enforce the following remedies until compliance or payment:

- a. rejection of flight plans and denial of the use of facilities and services of CAAP;
- b. suspension of CAAP-issued Certificates such as Certificate of Registration, Certificate of Airworthiness, and other licenses issued by the Authority;
- c. enforcement of lien against properties of the debtor as authorized by R.A. No. 9497 and other international laws and conventions as applicable; and
- d. the remedies enumerated herein does not preclude CAAP from enforcing its rights through all applicable laws.